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No. 8 - Caroline Lipe v. J. Frank Associates, LLC, et al.

Plaintiff Caroline Lipe's Motion to Compel Defendant to Produce Person(s) Most Qualified and Documents in Deposition Notice

Plaintiff Caroline Lipe moves to compel Defendant J. Frank Associates, LLC to produce person(s) most qualified ("PMQ") and documents in deposition notice. The Court published a tentative ruling, and heard argument from both parties on September 22, 2026. The Court updated the tentative and issues this final ruling.

As an initial matter, the Court notes that this singular motion was brought to seek relief for multiple issues. Plaintiff seemingly seeks (1) an order compelling further deposition testimony from Defendant's PMQ Anne Hoffnung (or otherwise compel a different PMQ to appear) as to deposition topic nos. 2, 3, 4, 5, 6, 7, 8, 9, and 18; (2) an order compelling Defendant to produce a PMQ to testify to topic nos. 1, 3, 7, and 9; and (3) an order compelling Defendant to produce all documents requested in the PMQ notice of deposition. Plaintiff also requests monetary sanctions. The Court will address each in turn.

PMQ as to Topic Nos. 2, 3, 4, 5, 6, 7, 8, 9, and 18

"If a deponent fails to answer any question ..., the party seeking discovery may move the court for an order compelling that answer." (Code Civ. Proc., § 2025.480(a).)

Plaintiff argues that the PMQ that was designated to testify on topic nos. 2, 3, 4, 5, 6, 7, 8, 9, and 18, Anne Hoffnung, was not properly prepared for her June 1, 2026 deposition because she did not know the answers to certain questions. For support, Plaintiff includes a separate statement which includes the topic Hoffnung was supposed to testify to, followed by generalized arguments that Hoffnung did not know the answers to several questions on the topic and some citations to deposition testimony. For example, for topic no. 6, the PMQ was designated to testify as to "All communications between any partner of Defendant J. Frank Associates, LLC and anyone else regarding Plaintiff's disability between 2019 and 2023." (Pl. Sep. Statement, at p. 6.) Instead of providing the Court with the text of the actual question(s) posed at deposition and Hoffnung's allegedly deficient responses, Plaintiff states:

Anne Hoffnung could not recall or responded "I don't know" to several questions on this topic, even though she was supposed to be the person most qualified to testify on the company's behalf on this subject matter. *Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1395-1398. See excerpts from Hoffnung Depo, attached to Laba Declaration, e.g. Hoffnung Depo. pg. 212 line 6 – pg. 217 line 7. See also Hoffnung Depo. pg. 240 line 2-5. Hoffnung Depo. pg. 241 line 2-pg. 242 line 4.

(Ibid.)

Under California Rules of Court, rule 3.1345(c), “The separate statement must include—for each discovery request ... to which a further response, answer, or production is requested—the following: (1) The text of the request, interrogatory, question, or inspection demand; (2) The text of each response, answer, or objection, and any further responses or answers; (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute.”

This separate statement does not include the text of each deposition question and the text of each response or objection. Without this information, the Court cannot properly evaluate whether further deposition testimony as to certain questions should be compelled, or whether Hoffnung indeed did not sufficiently prepare for the deposition.

Moreover, under the Code, “the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (CCP § 2025.230.) Here, Defendant’s PMQ is its Chief Human Resources Officer who has worked for the company for more than sixteen years. (Davis Decl., ¶ 4.) Defense counsel attests that Hoffnung prepared for the deposition: she “reviewed discovery documents produced in this litigation, the employee handbook, Plaintiff’s performance reviews, emails concerning Plaintiff’s performance, and a compiled timeline of events.” (Id., ¶ 7.) Hoffnung testified at her PMQ deposition for approximately seven hours. (Id., ¶ 6.) To the extent Plaintiff is dissatisfied that Hoffnung did not have the answers to some deposition questions posed, without knowing the questions or the responses provided, there is little relief that the Court can afford. Based on the nature of the PMQ deposition process, Defendant may be limited to what evidence it can offer at trial if its PMQ could not provide that evidence during the deposition. To the extent Plaintiff argues that Defense counsel instructed Hoffnung not to answer certain questions, Plaintiff should have outlined the specific questions, and specific objections raised by counsel, in her separate statement.

It is also unclear to the Court if Plaintiff seeks to depose Hoffnung a second time or desires to depose a different PMQ designated for the topics identified. In either case, the Court lacks sufficient information to compel the relief sought.

PMQ as to Topic Nos. 1, 3, 7, and 9

As to topics nos. 1, 3, 7, and 9 on the deposition notice, Plaintiff argues that a PMQ was not produced to appear for a deposition. This argument is without merit. The record reflects that counsel shared a mutual understanding that Jed Repko would be Defendant’s PMQ as to topic nos. 1, 3, 7, and 9. (Davis Decl., Ex. E.) However, the parties agreed to proceed with Repko’s deposition in his individual capacity first to evaluate whether a second deposition of Repko in his capacity as PMQ would be necessary. (Ibid.) Here, Repko’s deposition in his personal capacity occurred on July 28, 2026. (Davis Decl., ¶ 15.) The record shows that counsel disagreed as to whether all PMQ topics were covered by the single deposition and Plaintiff’s counsel agreed to meet and confer about it off the record at Repko’s deposition. (Davis Decl., Ex. H.) However, instead of meeting and conferring further about the issue, Plaintiff filed this motion three days later, claiming that Repko’s deposition as a percipient witness was not a substitute for his PMQ deposition and that “defense counsel refused to provide any dates before the end of July for the second PMQ witness to appear for questioning.” (Reply, at p. 7.) However, there is no evidence that Defense counsel refused to produce Repko for a PMQ deposition. It appears that Defense counsel was awaiting further meet and confer on the issue. Because Defendant did not fail to produce Repko for a PMQ deposition, the Court will not compel this relief.

Document Production

Plaintiff seeks further document production for request nos. 1, 3, 6, 14, and 16 listed in the PMQ deposition notice.

For request no. 1, Plaintiff seeks an unredacted version of an email produced by Defendant. That document is attached as Exhibit D to the Laba Declaration. Defendant failed to meet its burden of establishing that the redacted portion contains privileged information. As such, Defendant is ordered to produce the unredacted version of the document identified as

J.Frank_000209.

For request no. 3, Plaintiff seeks an unredacted version of Plaintiff's self-evaluation. In opposition, Defendant agreed to produce this. As of the date of the hearing, though, Defendant had not yet produced the unredacted version. Defendant is ordered to produce the unredacted version of Plaintiff's self-evaluation.

For request no. 6, Defendant properly objected to the request based on overbreadth and privacy. The request seeks "Eric Brielmann's personnel records, including all performance evaluations, reviews, peer evaluations, complaints against Eric Brielmann, investigations into Eric Brielmann, and any requests to be reassigned from Eric Brielmann." In Defendant's opposition, Defendant agreed to produce Brielmann's personnel records, "excluding benefit-enrollment forms and tax or financial documents." (Davis Decl., ¶ 30.) The Court finds that this narrowing is appropriate and will order Defendant to produce it.

For request no. 14, Defendant made several objections. In opposition, Defendant claims that no responsive documents exist. The Court cannot compel production of documents that do not exist.

For request no. 16, Plaintiff seeks "All communications regarding the creation of, comments upon, revisions to, or other discussions of Plaintiff's self-evaluation." Defendant made several objections to the request. However, in opposition, Defendant claims that it will "produce any located communications regarding Plaintiff's self evaluation." The Court will compel production in accordance with Defendant's representations.

Sanctions

Both parties move for sanctions against one another. "The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.480(j).)

The Court declines to award sanctions here. Both parties were partially successful. Plaintiff obtained an order compelling production as to some document requests. Meanwhile, Defendant successfully opposed Plaintiff's request to compel PMQ deposition testimony. Both parties acted with substantial justification.

Disposition

Plaintiff Caroline Lipe's motion to compel Defendant J. Frank Associates, LLC to produce person(s) most qualified and documents in deposition notice is granted in part.

Defendant is ordered to produce documents responsive to request nos. 3, 6 and 16, and the unredacted version of the document identified as J.Frank_000209, within 10 court days.